

I. Request

1. The Secretary of State for Internal Administration requested an opinion from the National Data Protection Commission (CNPd) regarding the request for authorization of the video surveillance system in the Municipality of Portimão, submitted by the Public Security Police (PSP).
2. The aforementioned request was presented on May 2, 2023, pursuant to paragraph 3 of Article 5 of Law No. 95/2021, of December 29 (hereinafter Law No. 95/2021), which regulates the use and access by security forces and services and by the National Authority for Emergency and Civil Protection to video surveillance systems for capturing, recording, and processing images and sound.
3. This request originates from a proposal made by the PSP, with the purpose of expanding the video surveillance system initially implemented.
4. The CNPD, through its Opinion 2020/91 of August 4, 2020, expressed its views on the initial proposal, recommending the strengthening of security measures to be implemented, better referenced in points 2.2 and 2.3 of that opinion¹.
5. The then Secretary of State for Internal Administration, by Dispatch No. 8192/2020 (Diário da República, 2nd series, C, No. 164, p. 39), approved the installation and operation of a video surveillance system, composed of sixty-one (61) cameras, for the purpose of protecting the safety of persons and property, as well as for crime prevention, covering twenty-four (24) locations in the municipality of Portimão, with fifty-one (51) cameras installed in three surrounding areas of Praia da Rocha and ten (10) cameras installed on the main road access routes to the city of Portimão.
6. In that Dispatch and through subparagraphs a) to j) of its paragraph 4, ten (10) conditions were imposed for the implementation of this video surveillance system, namely:
 - a) The video surveillance system must be operated in a manner that ensures the effective safeguarding of privacy and security, fully complying with the applicable legal provisions;
 - b) The head of the Exploitation Section of the Information and Communications Systems Unit of the Faro District Command of the PSP is responsible for the conservation and processing of the data;
 - c) The video surveillance system will operate continuously, twenty-four hours a day, every day of the week;
 - d) Whenever a concrete danger to the safety of persons and property is identified, the capture and recording of sound is permitted;
 - e) The rights of access and deletion must be guaranteed, in accordance with the provisions of paragraph 1 of Article 10 of Law No. 1/2005, of January 10, amended and republished by Law No. 9/2012, of February 23;
 - f) The barring of private locations must be carried out, preventing the visualization, namely, of doors, windows, and balconies;
 - g) The use of hidden cameras is not permitted;
 - h) The security procedures to be adopted by the responsible entity must include logical access security to the system;
 - i) All operations must be subject to recording;
 - j) The recording reports must report all detected anomalies and must be archived for a minimum period of two years."
7. The request now made aims for "the installation of cameras in 5 (five) additional locations in the urban area of Praia da Rocha, in the area where the video surveillance system is already operational, bringing the total to 42 (forty-two) cameras in 29 (twenty-nine) locations" (§ 5 of the Opinion of 04/10/2023 from the Faro District Command of the PSP).
8. The person responsible indicated in subparagraph b) of paragraph 4 of the aforementioned Dispatch No. 8192/2020 was not called upon to provide any advice regarding the impact assessment concerning this expansion of the mentioned video surveillance system.
9. The IT and Inspection Unit of the CNPD issued a technical opinion on June 27, 2023, regarding the present expansion of the video surveillance system in the city of Portimão.

10. The CNPD issues an opinion pursuant to paragraph 3 and within the deadline set by paragraph 4 of Article 5 of Law No. 95/2021, in conjunction with subparagraphs b) and c) of Article 87 of the Code of Administrative Procedure.

¹ Accessible at: .

PAR/2023/44

2

II. Assessment

a) General considerations on the subject of the opinion to be issued

11. The competence of the CNPD's pronouncement concerns the compliance of the present request with the observance of the rules regarding the security of the processing of collected data and with the provisions in paragraphs 4 to 6 of Article 4 and Articles 16, 18 to 20, and 22 of Law No. 95/2021.

12. The subject of this opinion also addresses the respect for the prohibition of installing and using fixed or portable cameras in areas that, although located in public places, are, by their nature, intended to be used in privacy, as well as the use of video cameras when the capture of images and sounds encompasses the interior of a house or inhabited building or its dependencies, as well as hotel establishments and similar, and when such capture directly and immediately affects the sphere of the reserve of intimate and private life.

13. The subject of this opinion also includes the collection and subsequent processing of personal data, especially when carried out through a data analytics management system, by applying technical criteria, as well as the respect for the conditions and limits of conservation of recordings.

14. The CNPD must also verify whether the rights to information, access, and deletion are ensured for all individuals appearing in recordings obtained in accordance with the aforementioned law, with the exceptions provided for in the law.

b) The scope and purposes of the expansion of the video surveillance system

15. The CNPD, under the competencies defined in Law No. 95/2021, is generally not required to pronounce on the proportionality of the use of video surveillance systems in public places of common use.

16. However, this competence does exist when it concerns the installation of cameras in areas that are, by their nature, intended to be used in privacy, or when those cameras capture images and sound from the interior of a house or inhabited building or its dependencies, as well as from hotel establishments and similar, or when the capture of images or sound directly and immediately affects the sphere of the reserve of intimate and private life (cf. paragraphs 4 to 6 of Article 4 of Law No. 95/2021).

17. The matter at hand involves the processing of data resulting from the expansion of the video surveillance system in the city of Portimão, which according to Annex C) corresponds to the installation of five (5) additional cameras in five (5) locations for monitoring the areas better identified by positions 25, 26, 27, 28, 29. The technical characteristics of these cameras are also included in Annex C).

i) The system installed and to be installed: some inaccuracies

PAR/2023/44

2v.

18. The CNPD begins by noting that there is a discrepancy between the number of video surveillance cameras initially authorized in the surrounding area of Praia da Rocha (fifty-one (51) installed cameras) and the total number of cameras that will result from the present request for expansion ("[n]um total de 42 (forty-two) cameras in 29 (twenty-nine) locations") – there is only a coincidence in the number of locations of these cameras. Accordingly, it will be necessary to specify the number of cameras that are already installed and operational.

19. In the justification of this new request, the following was essentially mentioned: "With the start of the operationalization of the system, on November 1, 2022, it was possible to verify that in this area there were some blind spots that undermine the overall utility of the investment made. The locations in question are areas outside of restaurants and bars where situations of public order disturbances have been recorded, and there is particular interest in viewing, in real-time, the events in these locations

and, thus, redirecting police resources to ensure the protection of the safety of people, animals, and property in public or publicly accessible places, as well as the prevention of acts qualified by law as crimes" (§ 4) of the Opinion of April 10, 2023, from the District Command of Faro of the PSP).

20. The CNPD notes that with the present expansion of the video surveillance system, there is also an extension of the scope of its purposes, as it now encompasses the management of human and technical police resources ("redirecting police resources"), which could have been implied in the original authorization order but was not expressly stated.

21. The CNPD also registers some discrepancies between what has already been approved and what has now been requested for expansion, as is the case with sound capture, where it is stated that "it will not collect sound" (§ 8 of the Opinion of April 10, 2023, from the District Command of Faro of the PSP).

22. Thus, although the general rule is the non-capture of sound, Dispatch No. 8192/2020 allows for such capture and recording "Whenever there is a concrete danger to the safety of persons and property."

23. Therefore, does the present expansion intend to bring about a general reformulation of the conditions of the video surveillance system? Is this change directed only at the new cameras to be installed? Will there be no alteration to the original conditions? It would be entirely appropriate for these doubts to be clarified.

24. In this regard, and with purely pedagogical intentions, we draw attention to the fact that the concept of "concrete danger to the safety of persons and property" is distinct from the concept of "abstract danger to the safety of persons and property," both having in common the existence of conduct conducive to or capable of causing harm through criminal acts. However, concrete dangerous behavior requires the eminent proof of harm to legal assets, through a judgment of verification of that danger, while dangerous behavior...

PAR/2023/44

3

Abstract danger does not require this confirmation, through a presumption of such danger. Thus, it would be advisable to clarify the concept in question, not only from a data protection perspective but also from a criminal investigation perspective (e.g., the crime of drug trafficking is a crime of abstract danger).

ii) The blocking of private locations through the application of digital masks

25. The CNPD also verifies that the request for authorization to expand the video surveillance system consists of all-in-one style cameras, as they allow multiple purposes at once (e.g., face detection, sound source localization, blocking other objects, etc.), with a 360° view of the location where they are installed.

26. However, no records of images from this global capture were provided, making it impossible to understand what blocking will be applied in the new areas of camera installation, which prevents the CNPD from pronouncing accordingly.

27. Nevertheless, the CNPD reminds that Dispatch No. 8192/2020 establishes as a condition "the blocking of private locations, preventing the visualization, namely of doors, windows, and balconies."

iii) The use of artificial intelligence for facial recognition through patterns

28. The new cameras to be installed are equipped with technology that allows the use of facial recognition functionality.

29. The CNPD issued Opinion 2020/91 on the assumption that it would not be used, as the use of artificial intelligence through soft recognition technology was not mentioned in the instruction of the process. The aforementioned Dispatch No. 8192/2020 made no mention of this functionality. The current request also does not refer to the use of this functionality.

30. Law 95/2021 establishes in its Article 16, No. 2 that for the purposes of data collection and processing, through analytical management, using technical criteria, "the capture and processing of biometric data is not permitted," which may be based on discriminatory image patterns, such as race.

31. The CNPD recommends that the future authorization for the expansion of this video surveillance system take this legal command into account in its implementation, establishing it as a requirement.

iv) The registration and conservation of processing operations

32. The CNPD, regarding the registration and conservation of data processing operations and based on the annexes that were attached with the previous request and the current expansion, continues to have the following doubts:

i) Security in data transmission: MPEG-4 has as its sole purpose the compression of audio and visual data, not allowing the encryption of such data. Thus, it is unclear how it can be a security mechanism for data processing; ii) auditability of operations: does it pertain to the operating system of the operator's workstation or to the operations that the video surveillance system must register? The term "all operations" is intensely vague, making it impossible to assess what is at stake and much less to establish the corresponding audit; iii) the data retention period: the time frame for storing the information collected by the video surveillance system remains undefined, as does the criterion to be used for its deletion.

v) The guarantees for the security of processing and subcontracting

33. The PSP presented proof of a financing commitment for the installation and maintenance of the video surveillance system assumed by the Municipality of Portimão.

34. In turn, the President of the Municipality of Portimão, representing the respective municipality, entered into a contract (No. 076/2022) with the company SOLTRÁFEGO – Soluções Trânsito, Estacionamento e Comunicações, S. A., for the "Supply and Installation of a Video Surveillance System to be Installed on the Public Roads of Praia da Rocha and Main Road Accesses to the Municipality of Portimão," as disclosed.

35. This contract does not include a clause obligating the maintenance of the aforementioned video surveillance system, and it is unknown who bears that responsibility.

36. The CNPD draws attention to the fact that the installation and maintenance of a video surveillance system are directly related to information security and the system's ability to fulfill the intended purposes.

37. In turn, the PSP is the entity responsible for processing personal data from the video surveillance system implemented and to be implemented in the city of Portimão, as, according to Article 17, No. 1 of Law No. 95/2021, such duty falls on the "security force or service requesting [...] with jurisdiction in the capture area," regardless of who owns the cameras and other equipment that make up the system.

38. This responsibility extends to contracts that the responsible party may enter into with third parties, as stated in Article 17, No. 2 of Law No. 95/2021, with its regulation governed by Law No. 59/2019, of August 8, which approved the rules regarding the processing of personal data for prevention purposes.

2 Available at

<https://www.base.gov.pt/Base4/pt/resultados/?type=doc&documents;&id;=1856614&ext;=.pdf>
PAR/2023/44

4

Detection, investigation, or repression of criminal offenses or enforcement of criminal sanctions, where we highlight its Article 23.

39. Thus, the CNPD does not rule out the possibility of the PSP subcontracting with the Municipality of Portimão the maintenance of the video surveillance system, through the implementation of appropriate technical and organizational measures (Article 23, paragraph 1 of Law No. 59/2019). It also does not reject that the Municipality of Portimão may subcontract the achievement of those same objectives with any other company, but subject to prior, specific, or general authorization from the PSP (Article 23, paragraph 2 of Law No. 59/2019).

40. However, any subcontracting aimed at ensuring the maintenance or replacement of the equipment must be contractually formalized (Article 23, paragraph 4 of Law No. 59/2019).

41. The CNPD cannot fail to emphasize that there can be no reversal of roles, leaving the PSP without control or oversight of the processing of personal data resulting from the current video surveillance system, particularly regarding its responsibilities in maintaining that system, whether concerning what is implemented or what will be implemented.

42. In this regard, it is important that a contract or agreement is established that specifically regulates this subcontracting relationship, binding the Municipality of Portimão, as well as the company that has been or will be contracted to ensure the maintenance of the video surveillance system in the

Municipality of Portimão – which, in this specific case, does not seem to have occurred to date.

vi) Other issues to consider

43. The CNPD draws attention to the fact that there is no procedure provided for the retention of images for a period exceeding 30 days when these relate to the viewing of facts with criminal relevance.

44. The CNPD reminds that the signaling of the use of the video surveillance system remains mandatory (Article 22 of Law No. 59/2019), namely its existence and signaling (a), the purpose of capturing images and sounds (b), and the identification of the person responsible for processing the collected data (c).

45. In this context, it is worth recalling that the PSP is the public authority and the entity responsible for processing personal data from the implemented and to be implemented video surveillance system in the Municipality of Portimão, while the person designated in Dispatch No. 8192/2020 performs functions similar to that of a data protection officer, namely as a point of contact.

46. It is also worth mentioning the legal requirement for the publicity of authorized video surveillance systems (Article 23 of Law No. 59/2019), through the corresponding electronic platform, where the date and location of the installation, its applicant, and purposes are recorded, covering the corresponding changes and expansions (paragraph 1), as well as the availability of the corresponding information on the ePortugal portal, with the respective hyperlink to the aforementioned electronic platform (paragraph 2).

III. Conclusions

47. The CNPD, under the authority granted by Law No. 95/2021 and in accordance with the terms and grounds set forth, reminding that it is not within its competence to pronounce on the specific grounds for the substantial expansion of the video surveillance system in the Municipality of Portimão, recommends the following:

- a. clarification of the number of cameras already installed in the perimeter of Praia da Rocha, as well as the total number of cameras that will be part of the video surveillance system in that area of the city of Portimão and throughout its Municipality, in light of the incongruence detected between the request and the accompanying documentation;
- b. delimitation of the purposes of protecting people, animals, and property and of preventing and repressing criminal activities, by the different sets of video surveillance cameras, based on the risks by area or zone, in order to allow for the assessment of the proportionality of the video surveillance system, as well as the proportionality of the intended analytical image management system;
- c. the use, to ensure privacy, of masking techniques to be applied to all windows and doors of buildings intended for residential and hotel or similar activities, which must be properly configured;
- d. the adoption of measures capable of ensuring the security of the system and the auditability of the processing of personal data;
- e. the necessity for the intervention of the Municipality of Portimão as a subcontractor, as well as any potential sub-subcontractors, to be expressly and clearly delineated in a contract or agreement, particularly concerning the maintenance of the video surveillance system.

48. The CNPD particularly recommends against authorizing the use of the data analytical management system, given the blatant absence (in the request and the elements that support it, especially the lack of a data protection impact assessment) of a definition of the underlying criteria, due to the impossibility of verifying compliance with the legal and constitutional conditions and limits for its use, as well as assessing the proportionality of that use.

PAR/2023/44

5

Approved at the meeting on July 25, 2023

Paula Meira Lourenço (President)

Signed by: PAULA CRISTINA MEIRA LOURENÇO

Date: 2023.07.25 18:27:17+01'00'

Certified by: Electronic Diário da República

Certified attributes: President - National Data Protection Commission